Budget Process

Adopted April 2, 2025

Amended November 12, 2005

The public is encouraged to provide input on PVLAD expenditures and plans. Upon formal adoption, the budget constitutes spending authority and a formal plan for spending. The PVLAD will not spend more than what is adopted in the budget, even if more money is available. (Utah Code 17B-1-617).

Annual Assessment Fees

The PVLAD board will review the annual assessment fee during its annual budget process. Effective May 1, 2024, the fees are

- Residential Homes - $20 per year
- Vacant Lots - $0 per year
- Commercial and STRs - $20 per year

Budget Calendar

The budget process must be completed before December 31. The PVLAD will follow this calendar:

October

- The Clerk and Treasurer (as designated by the board Chair) prepares a tentative budget for the board to review at its first regularly scheduled meeting in November.

November

- At this meeting, the board shall approve a tentative budget and set a final budget public hearing date.
- Make the tentative budget available to the public a minimum of seven days prior to the public hearing for the adoption of the final budget:
  - Post on the community billboard at the post office
  - Post on NextDoor and Pine Valley community website.
  - Post on the PVLAD websites, if established.
  - Post on the Utah Public Notice Website or a link to the website where the tentative budget is published.
- Post notice for the public hearing date at least seven days before the hearing date. The public hearing may be an agenda item on the regularly scheduled public meeting.

December

- Hold the public hearing, adopt the final budget by resolution, and submit a copy of the final budget to the Office of the State Auditor within 30 days (Utah Code 17B-1-614).

Budget Amendments

Budget amendments may be made during the budget year to increase the original budget; however, budgets may not be changed after the budget year end (Utah Code 17B-1-622). Generally, budget amendments must follow the same procedures as the adoption of the original budget (public notice and public hearing); however, there are some exceptions (Utah Code 17B-1-629 and 17B-1-630).

The PVLAD may move budgeted expenditures from one budgeted line item to another without a public hearing, as long as the adjustment is within the same fund and as long as the adjustment does not increase total expenditures or involve reducing the amount budgeted for debt retirement or reduction of a deficit (Utah Code 17B-1-620).

Fund Balance Limitations

The PVLAD will follow Utah Code 17B-1-612 limiting the amount that can be retained as an unreserved fund balance in the general fund. The accumulation of a fund balance in the general fund may not exceed the greater of:

- 100% of the current year's annual assessment
- 25% of the total general fund revenues if general fund budget is greater than $100,000 or
- 50% of the total general fund revenues if general fund budget is equal to or less than $100,000

PVLAD may accumulate funds for the purpose of financing future specific capital projects, including new construction, capital repairs, replacement, and maintenance, under a formal long-range capital plan adopted by the board. Generally, the accumulation of these funds should be reported in a capital projects fund.